



File No.: EXP202309333

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 27, 2023. The complaint is directed against the entity identified as B.B.B. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

The complainant provides a Notarial Act documenting the existence of surveillance cameras in the residence of the respondent, which adjoins the residence of the complainant, with said cameras evidently directed towards the residence of the complainant, without having authorization for this. A Notarial Act dated December 15, 2022, is provided, which includes photographs of the situation of the claimed cameras (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent on June 6, 2023, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: On July 26, 2023, a written response was received in this agency regarding the facts subject to transfer by this Agency, arguing the following:

“That the installed cameras are dedicated to the surveillance of the residence, to prevent and combat unlawful conduct and to guarantee order and tranquility (...) given that several acts of vandalism have occurred at the residence.

A report from the company that installed the cameras is provided, certifying the statements made and a photographic report of where the cameras are located and the area that is visible.”

FOURTH: On September 27, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FIFTH: On July 2, 2024, the Director of the Spanish Agency for Data Protection decided to initiate a warning procedure against the respondent for the alleged infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The notification of the aforementioned initiation agreement was carried out in accordance with the regulations established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), as evidenced in the administrative file.

SEVENTH: On September 16, 2024, a written response was received in this agency from the respondent regarding the facts subject to transfer, stating the following in relation to them:

“That the video surveillance cameras installed on the Road (...) (...) are intended for the surveillance of the residence, as evidenced by the Installer's Report, these cameras comply with the regulations regarding the Law on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), since they do not capture public space or private areas of other owners, but only their own.”

Attached as a document (Annex I) Soluciones canarias Electricidad LG (SL).

In view of all the actions taken by the Spanish Agency for Data Protection in this proceeding, the following facts are considered proven,

PROVEN FACTS

First. The facts arise from the complaint dated June 27, 2023, through which the presence of cameras in the residence of the respondent, which adjoins the residence of the complainant, is reported, with said cameras evidently directed towards the residence of the complainant, without having authorization for this.

Second. It is evidenced that B.B.B. is the main responsible for the installation, who does not deny having installed cameras.

Third. It is evidenced that the installed video surveillance camera system does not have an informative sign that complies with current legality.

Fourth. It is evidenced that the video surveillance camera system is poorly oriented, obtaining personal data of third parties without justified cause.

The respondent attached a screenshot of what is observed with the installed camera(s), in a report dated September 13, 2024, issued by the installing company (Doc. Annex I), where excessive capture of adjacent space affecting the rights of third parties is observed.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In this case, the complaint dated 27/06/23 is examined, through which the "presence of video surveillance cameras" that may affect the complainant's residence is reported.

The cameras are installed as evidenced by the notarized record provided at the residence located at Carretera General ***ADDRESS.1.

Article 5.1 c) GDPR provides as follows: Personal data shall be: "adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed ('data minimization')."

It should be noted that individuals are responsible for ensuring that the installed systems comply with current legislation, demonstrating that they meet all the requirements established by the applicable regulations.

The installation of such devices must have the mandatory informative sign, indicating the purposes and the data controller responsible for the processing of personal data, if applicable.

In any case, the cameras must be directed towards private space, avoiding intimidating neighboring residents with such devices, as well as monitoring areas of transit without justified cause.

Moreover, such devices cannot capture images of public space, as this is the exclusive competence of the State Security Forces and Corps, complying with the requirements of Organic Law 4/1997, of August 4, which regulates the use of video cameras by the Security Forces and Corps in public places.

It is worth remembering that even in the case of a "simulated" camera, it must preferably be directed towards private space, as it is considered that such devices can affect the privacy of third parties, who feel intimidated by it under the belief of being subject to permanent recording.

Individuals cannot install devices for capturing images of public space and/or the transit of third parties, outside the cases permitted by the regulations.

The purpose of such devices must be the security of the property and its inhabitants, avoiding the infringement of the rights of third parties who may feel intimidated by them.

The cameras must be limited to the protection of the property owned by the individual in such a way that they do not affect the area of third parties who may feel intimidated by them, affecting their free transit area or private space.

III

In accordance with the evidence available in the present warning procedure, it is considered that the respondent has a video surveillance camera system, which, according to the examined evidence, is poorly oriented, affecting public space and/or that of a third party without justified cause.

Based on the evidence provided by the installing company, it is established that the exterior cameras disproportionately capture images of the width of the path, allowing for the collection and processing of data from third parties freely transiting in that adjacent space.

The camera installed for the protection of the garage door is considered excessive in terms of its angle of orientation, as it allows for the capture of images of the entire width of the path, exceeding the logical protection of the garage door itself.

This is consistent with the images provided by the respondent, which confirm the poor orientation of the cameras, capturing images disproportionately.

The known facts constitute an infringement, attributable to the respondent for violating Article 5.1 c) GDPR, as transcribed in the previous section.

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious and prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which establishes that: "In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, very serious infringements that constitute a substantial violation of the articles mentioned therein shall prescribe after three years, particularly the following:

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a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)

IV

Given that the cameras are installed on the exterior facade of the property of the respondent, they must be marked with the corresponding informative sign indicating that it is a video-monitored area.

Article 22, paragraph 4 of the LOPDGDD (Organic Law 3/2018, December 5) states:

"The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informative device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679."

The aforementioned facts constitute a violation of the content of Article 13 of the GDPR, as there is a lack of informative sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main data controller.

Article 13 of the GDPR "Information to be provided when personal data are obtained from the data subject" 1. When personal data relating to a data subject are obtained from that data subject, the data controller shall provide all the information indicated below at the time of obtaining such data: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, paragraph 1 of the LOPDGDD (Organic Law 3/2018, December 5) regarding the statute of limitations for very serious infringements states that "they shall expire after three years" and particularly includes the following: h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

Therefore, the commission of the infringement of Article 13 of the GDPR is considered established, due to the lack of the mandatory informative sign in a visible area indicating that it is a video-monitored area, given that the presence of the external camera exceeds the personal and domestic sphere, and its presence must be duly informed.

V

Article 83.5 of the GDPR states: "Infringements of the following provisions shall be subject to administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of data subjects under Articles 12 to 22 (...)

Without prejudice to the provisions of paragraph 2 of Article 83 of the GDPR, the aforementioned Regulation provides in paragraph 2.b) of Article 58 "Powers" the following:

"Each supervisory authority shall have all of the following corrective powers:

(...)

- b) to issue a warning to any controller or processor when processing operations have infringed the provisions of this Regulation; (...)"

Furthermore, Article 64 of the LOPDGGD, which regulates the "Form of initiation of the procedure and duration," states in its third paragraph that:

"3. When appropriate, taking into account the nature of the facts and duly considering the criteria established in Article 83.2 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, the Spanish Data Protection Agency, after hearing the controller or processor, may issue a warning, as well as order the controller or processor to adopt corrective measures aimed at ending the possible non-compliance with data protection legislation in a specified manner and within the specified time frame.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After that period, it shall expire, and consequently, the file shall be closed.

The provisions of the second and third paragraphs of paragraph 2 of this article shall apply in this case."

VI

The respondent shall proceed to reinstall the system (either by removing the external camera or by reorienting it exclusively to the garage door, in such a way as to limit the angle of capture of the adjacent path to the property), providing a photograph with date and time that proves the before/after of the adopted measure; as well as, in the case of opting to maintain the external camera, placing an informative sign, in accordance with the current regulations (e.g., indication of the controller, how to exercise rights, etc.).

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of this procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to Mr. B.B.B., with NIF ***NIF.1, for an infringement of Article 5.1.c) and 13 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO ORDER Mr. B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 1 MONTH from the date this resolution becomes final and enforceable, to demonstrate compliance with the following measures:

- Placement of an informational sign in a visible area indicating that it is a .
- Removal and/or reinstallation, as applicable, of the cameras, in such a way that the angle of capture is limited to an area exclusively belonging to him, and he must provide a screenshot of what is captured by the same.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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